

Poshaki Lal v. State of U.P.

Allahabad High Court · Division Bench · 9 February 2016 · WRIT - C No. 5548 of 2016 · **Writ dismissed; petitioner relegated to Clause 6.5(b) bill dispute.**

HEADNOTE

A writ challenging an electricity bill as excessive, including for a disconnection period, was dismissed because Clause 6.5(b) of the Uttar Pradesh Electricity Supply Code, 2005 supplies a statutory remedy to dispute an excessive bill, and the High Court will not examine the bill's correctness in the first instance.

FACTUAL SUMMARY

The petitioner, Poshaki Lal, claimed an electricity connection under the Union Government's Kutir Jyoti Programme for persons below the poverty line. He challenged a bill raised by the Executive Engineer of Madhyanchal Vidyut Vitran Nigam Limited, Budaun, as highly excessive and as covering even the period when supply stood disconnected. In substance he disputed the entire bill. Counsel for the respondents submitted that a statutory alternative remedy was available under Clause 6.5(b) of the Uttar Pradesh Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5(b)

excessive bill — alternative remedy

HOLDING

Where the consumer disputes an electricity bill as excessive, including charges for a disconnection period, Clause 6.5(b) of the Uttar Pradesh Electricity Supply Code, 2005 furnishes a statutory alternative remedy, and the High Court will not in the first instance examine the correctness of the bill; the writ is dismissed with liberty to avail that remedy. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE BILLED AMOUNT, INCLUDING CHARGES FOR THE DISCONNECTION PERIOD

The Court declined to examine the bill on the merits because of the Clause 6.5(b) remedy. ¶ 1